

Nepal Nursing Council Act, 1996

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Amending Acts

1. Nepal Nursing Council (First Amendment) Act, 2058 (2001) 2058.10.4 (2002 January 18)

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2. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009) 2066.10.7 (2010 January 21)

3. Some Nepal Acts Amendment Act, 2072 (2015) 2072.11.13 (2016 February 25)

4. Some Nepal Laws Amendment, Codification, Consolidation and Repeal Act, 2074 (2017) 2074.6.3 (2017 September 20)

5. Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075 (2018) 2075.11.19 (2019 March 3)

Act Number 15 of the year 2052 (1996)

An Act Made to Provide for the Nepal Nursing Council

Preamble: Whereas, it is expedient to establish a Nursing Council to make the nursing service of Nepal effective, to operate it in an organized and scientific manner, and to provide for the registration of names of nurses according to their qualifications, Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Be it enacted by the Parliament in the twenty-fourth year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. 1. Short Title and Commencement: (1) This Act may be called the "Nepal Nursing Council Act, 2052 (1996)."

(2) This Act shall come into force in such area on such date as the Government of Nepal may, by notification in the Nepal Gazette, specify. 2.

Definitions: Unless the subject or context otherwise requires, in this Act,- (a) "Council" means the Nepal Nursing Council established pursuant to Section 3. (b) "Chairperson" means the Chairperson of the Council. (c) Inserted by the First Amendment.(c1) "Vice-Chairperson" means the Vice-Chairperson of the Council. (d) "Member" means a member of the Council, and this word also includes the Chairperson Inserted by the First Amendment. and the Vice-Chairperson. (e) "Nurse" means a person who has obtained a degree, diploma, or certificate in nursing from a teaching institution recognized under this Act. (f) Inserted by the First Amendment.(f1) "Midwife" means a person who has obtained a degree, diploma, or certificate in midwifery from a teaching institution recognized under this Act. (g) "A.N.M. (Auxiliary Nurse Midwife)" means a person who has obtained a certificate of A.N.M. (Auxiliary Nurse Midwife) from a teaching institution recognized under this Act. (h) Inserted by the First Amendment.(h1) "Nursing professional" means a nurse, midwife, and A.N.M. (i) Amended by the First Amendment.(i) "Registered nursing professional" means a nurse, midwife,

and A.N.M. whose name has been registered in the register. (j) "Register" means the register maintained for the registration of the names of nursing professionals under this Act. (k) "Registrar" means a person appointed or designated pursuant to Section 13. (l) Inserted by the First Amendment.(l1) "Teaching institution" means a government, non-government, or private teaching institution which provides or arranges for study, teaching, or training in subjects related to nursing, midwifery, and A.N.M. (m) "Prescribed" or "as prescribed" means prescribed or as prescribed by the rules framed under this Act. 3. Establishment of Council: A Nursing Council is hereby established for the systematic operation of the nursing service pursuant to this Act. 4. Council to be an Autonomous Body: (1) The Council shall be an autonomous and corporate body with perpetual succession. (2) The Council shall have its own separate seal for all its works. (3) The Council may, like a person, acquire, use, sell, or otherwise dispose of movable and immovable property. (4) The Council may, like a person, file and defend suits and complaints in its own name. 5.

Constitution of the Council: Amended by the First Amendment.(1) The Council established pursuant to Section 3 shall consist of the following members:- (a) A person nominated by the Government of Nepal from among persons who have obtained at least a bachelor's degree in nursing and have at least fifteen years of experience in the nursing profession - Chairperson (b) A person nominated by the Government of Nepal from among persons who have obtained at least a bachelor's degree in nursing and have at least twelve years of experience in the nursing profession - Vice-Chairperson (c) Two persons nominated by the Government of Nepal from among the campus chiefs of nursing campuses - Member (d) Chairperson, Nepal Nursing Association - Member (e) A nurse at the officer level designated by the Director General of the Department of Health Services - Member (f) A nurse at the officer level designated by the Dean of the Institute of Medicine, Tribhuvan University - Member (g) Three persons elected from among the general members of the Nepal Nursing Association - Member (h) One person nominated by the Government of Nepal from among nurses renowned in the nursing profession - Member (i) One person, being a registered nursing professional who has served in the nursing field for ten years, nominated by the Government of Nepal on the recommendation of the Council from among the nursing chiefs working in the Amended by the Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075. Provincial Health Directorate, Regional Hospital, or Zonal Hospital - Member (j) One person nominated by the Government of Nepal from among Matrons - Member (k) One person nominated by the Government of Nepal on behalf of consumers renowned in national life - Member (l) Representative, Council for Technical Education and Vocational Training - Member (2) Until members pursuant to clause (g) of sub-section (1) are elected, two persons nominated by the Government of Nepal from among the general members of the Nepal Nursing Association shall remain as members of the Council. (3) The Government of Nepal may, by notification in the Nepal Gazette, increase, decrease, or alter the members of the Council. (4) The Council may, if it deems necessary, invite any domestic or foreign expert in the nursing field to participate in its meeting as an observer. (5) The election procedure for members pursuant to clause (g) of sub-section (1) shall be as prescribed. 6. Term of Office of Members: (1) The term of office of nominated or elected members of the Council shall be four years. After the expiry of the term, they may be re-nominated or re-elected.

Inserted by the First Amendment.Provided, however, that the Government of Nepal may remove nominated members before the expiry of their term. (2) If the office of any member falls vacant before the expiry of the term, another member shall be nominated or elected for the remaining period. Inserted by the First Amendment.Provided, however, that- (1) The election or nomination shall, in general, be completed within three months from the date of vacancy. (2) No election or nomination shall be made for a period of less than six months. 7. Disqualification for Membership: A person shall be disqualified from being nominated or elected as, or from continuing to hold office as, a member of the Council if such person:- (a) Is not a Nepali

citizen, (b) Inserted by the First Amendment.Has not registered his/her name or whose name has been removed from the register, Inserted by the First Amendment.Provided, however, that this clause shall not apply in the case of members pursuant to clauses (k) and (l) of sub-section (1) of Section 5. (c) Is an undischarged insolvent, (d) Has been convicted by a court of a criminal offense involving moral turpitude, or (e) Is of unsound mind. 8. Circumstances for Cessation of Membership: Membership of the Council shall cease in the following circumstances:- (a) If a person becomes disqualified to remain a member pursuant to Section 7, (b) If the resignation tendered from the office of member is accepted, (c) Upon death, or (d) If a member remains absent from three consecutive meetings of the Council without giving notice of the reason to the Council. Inserted by the First Amendment.Provided, however, that the Council may permit a member to remain absent from meetings of the Council for a maximum period of up to six months. Amended by the First Amendment.9.

Functions, Duties and Powers of the Council: (1) The functions, duties and powers of the Council shall be as follows:- (a) To determine necessary policies for the smooth operation of the nursing profession, (b) To grant recognition to teaching institutions, (c) To evaluate and review the curriculum, admission conditions, examination system, and other necessary conditions and infrastructure of teaching institutions recognized pursuant to clause (b), (d) To recommend the revocation of the approval to operate such teaching institutions if, upon evaluation and review pursuant to clause (c), they are found not to have met the standards determined by the Council, (e) To determine the qualifications of nursing professionals and register the names of qualified nursing professionals in the register and issue registration certificates, (f) To determine the scope of work of nursing professionals, (g) To determine a professional code of conduct for nursing professionals and to take action against nursing professionals who violate such code of conduct. (2) Before granting approval for the establishment and operation of any teaching institution, the concerned body shall seek consultation with the Council. The Council shall, after verifying whether such teaching institution meets the necessary standards and infrastructure, provide necessary consultation in that regard. Based on such consultation of the Council, the concerned body shall make the necessary decision regarding whether or not to grant approval to establish and operate the teaching institution. In case approval for the establishment and operation of the teaching institution is granted, notice thereof shall be published in the Nepal Gazette. 10. Meetings and Decisions of the Council: (1) Meetings of the Council shall, in general, be held four times a year, and the Chairperson may call additional meetings if deemed necessary. (2) Meetings of the Council shall be held at the date, time, and place specified by the Chairperson. (3) The Chairperson shall preside over meetings of the Council.

In the absence of the Chairperson, Inserted by the First Amendment. the Vice-Chairperson, and in the absence of the Vice-Chairperson also, a person chosen by the members present in the meeting from among themselves shall preside over the meeting.

(4) The presence of fifty percent of the total number of members of the Council shall constitute a quorum for a meeting of the Council.

(5) The opinion of the majority shall prevail in a meeting of the Council, and in the case of a tie, the person presiding over the meeting may cast a casting vote.

(6) Decisions of the Council shall be certified by the Registrar.

(7) The allowances and other facilities payable to members for participating in meetings shall be as prescribed.

(8) Other procedures relating to meetings of the Council shall be as determined by the Council itself. 11. Delegation of Powers: The Council may, as required, delegate some of the powers conferred upon it under this Act to the Chairperson, Inserted by the First Amendment. Vice-Chairperson, a member, or to a committee formed pursuant to Section 12 or to the members of a committee. 12. Power to Form Committee: (1) The Council may, as required, form committees relating to various subjects by designating a coordinator and members for the implementation of the decisions of the Council.

(2) The meeting and other procedures of the committee pursuant to sub-section (1) shall be as specified by the Council. Inserted by the First Amendment.12A. Functions, Duties and Powers of the Chairperson: The functions, duties and powers of the Chairperson shall be as follows:-

(a) To determine the priority of subjects to be discussed in the meeting of the Council,

(b) To monitor and evaluate, or cause to be monitored and evaluated, the plans and programs operated by the Council and to give necessary directives in that regard,

(c) To carry out, or cause to be carried out, the work and proceedings of the Council in an organized, effective, and smooth manner,

(d) To carry out, or cause to be carried out, other functions as directed by the Council. Inserted by the First Amendment.12B. Functions, Duties and Powers of the Vice-Chairperson: It shall be the duty of the Vice-Chairperson to perform the functions, duties and powers that the Chairperson is required to perform under this Act in the absence of the Chairperson. 13.

Registrar: Amended by the First Amendment.(1) The Government of Nepal may appoint or designate any person who has obtained at least a bachelor's degree in nursing and has been engaged in the nursing profession for at least five years as the Registrar to carry out the daily administrative work and proceedings of the Council. (2) The Registrar shall act as the Secretary of the Council. (3) The terms of service, conditions, and facilities of the Registrar shall be as prescribed. (4) In the absence of the Registrar, the Government of Nepal shall designate any other officer-level employee of the Council to carry out all the work and proceedings that the Registrar is required to perform. 14. Functions, Duties and Powers of the Registrar: Except as otherwise provided in this Act, the other functions, duties and powers of the Registrar shall be as follows:- (a) To implement or cause to be implemented the decisions of the Council, (b) To prepare the agenda of subjects to be presented for discussion in the meeting of the Council, (c) Other functions, duties and powers as prescribed. 15. Employees of the Council: (1) The Council may, as required, appoint employees. (2) Employees appointed pursuant to sub-section (1) shall remain under the supervision and control of the Registrar. (3) The terms of service, conditions, and facilities of the employees of the Council shall be as prescribed. 16. Application for Registration of Name in the Register: (1) A Amended by the First Amendment.nursing professional who has obtained the minimum qualifications as prescribed and desires to practice the nursing profession shall, subject to this Act and the rules framed under this Act, submit an application as prescribed to the Council for registration of his/her name in the register. (2) Amended by the First Amendment.Nursing professionals practicing the nursing profession at the time of commencement of this Act shall, within six months from the date of commencement of this Act, submit an application pursuant to sub-section (1) to register their names in the register. (3) A Amended by the First Amendment.nursing professional submitting an application for registration of name pursuant to sub-section (1) or (2) shall attach with the application a certificate relating to his/her qualification, Omitted by the First Amendment and other documents and fees as prescribed. 17.

Action on Application and Certificate of Registration: (1) Upon receipt of an application pursuant to Section 16, the Registrar shall make necessary inquiry and submit it to the concerned subject committee for the registration of the name in the register. (2) The concerned subject committee shall, upon receipt of the application submitted pursuant to sub-section (1), inquire as to whether the qualification degree is recognized and whether the application is in proper form, and submit a report to the Council within fifteen days. (3) Based on the report submitted by the committee pursuant to sub-section (2), the Council shall decide whether or not to register the name of the applicant in the register. (4) If the Council decides to register the name of the applicant pursuant to sub-section (3), the Registrar shall register the name of such applicant in the register and issue a registration certificate to him/her in the prescribed format. If the Council decides not to register the name of the applicant, the Registrar shall inform the applicant thereof. Inserted by the First Amendment.(5) A registration certificate issued pursuant to sub-section (4) shall be valid for six years from the date of registration. Inserted by the First Amendment.(6) Provisions relating to the registration of names of non-Nepali citizens as nursing professionals in the Council shall be as prescribed. 18. **Removal of Name from Register and Re-registration:** (1) The Council may, in any of the following circumstances, order the removal of the name of a registered Amended by the First Amendment.nursing professional from the register:- (a) If he/she is of unsound mind, (b) If he/she has been convicted by a court of a criminal offense involving moral turpitude, (c) If he/she is an undischarged insolvent, or (d) If it is determined by a two-thirds majority of the Council that he/she has not complied with the prescribed Amended by the First Amendment.professional code of conduct relating to the profession. (2) If a Amended by the First Amendment.nursing professional whose name has been removed from the register pursuant to clauses (a), (c), and (d) of sub-section (1) applies for re-registration showing a reasonable cause, the Council may, if it deems fit to re-register his/her name, order the registration of the name. (3) Upon receipt of an order pursuant to sub-section (2), the Registrar shall, upon collecting fees as prescribed, re-register the name of such Amended by the First Amendment.nursing professional in the register and issue a certificate. Inserted by the First Amendment.18A.

Renewal of Name Registration: (1) A registered nursing professional shall, within thirty-five days from the date of expiry of the term, submit an application as prescribed to the Council along with the prescribed fee for the renewal of name registration. (2) If renewal is not made within the prescribed period pursuant to sub-section (1), an application stating the reason for not being able to renew may be submitted as prescribed to the Council within sixty days from the date of expiry of the term upon payment of the prescribed fee. (3) The name of a nursing professional who fails to renew within the period stipulated in sub-sections (1) and (2) shall be removed from the register. 19. **Cancellation of Certificate:** If it comes to the notice of the Council that the name of any person has been registered in the register by mistake or fraud, and upon inquiry such fact is found to be true, the Council may withdraw the registration certificate of such person and cancel the registration. Amended by the First Amendment.20. **Not to Practice Nursing Profession:** No person other than a registered nursing professional shall, directly or indirectly, practice the nursing profession. Amended by the First Amendment.21. **Power to Accord Recognition:** (1) The Council may accord recognition to teaching institutions that provide or arrange for study, teaching, or training in nursing subjects, and to degrees, diplomas, certificates, or other qualifications in nursing subjects. (2) Teaching institutions and degrees, diplomas, certificates, or qualifications recognized pursuant to sub-section (1) shall be published in the Nepal Gazette Notice published in the Nepal Gazette on 2061.8.14 (2004 November 29) according recognition to various teaching institutions and educational programs.. (3) A person obtaining a degree, diploma, certificate, or other qualification from a foreign teaching institution in nursing subjects shall submit an application as prescribed to the Council for the recognition of such qualification. (4) The Council shall, upon receipt of an

application pursuant to sub-section (3), make necessary inquiry and decide. Amended by the First Amendment. 22. Submission of Details: (1) A teaching institution recognized pursuant to sub-section (1) of Section 21 shall submit a report to the Council within three months from the date of expiry of each fiscal year containing details of the curriculum, admission conditions, examination system, and other necessary infrastructure and standards determined for the relevant educational qualification certificate or degree. (2) The Council shall recommend to the Government of Nepal for necessary action against a teaching institution that fails to submit details pursuant to sub-section (1). 23.

Inspection of Examinations: The Council may appoint and send inspectors to inspect examinations conducted by the concerned Amended by the First Amendment. teaching institution for educational qualification certificates or other degrees recognized pursuant to Section 21. An inspector so appointed shall submit a report to the Council containing the details prescribed by the Council relating to the examination inspected by him/her. Provided, however, that an inspector shall not be entitled to make any kind of interference in any such examination. Amended by the First Amendment. 24. Withdrawal of Recognition: (1) If, upon evaluation and review of the curriculum, admission conditions, and other necessary infrastructure and standards determined by a teaching institution recognized pursuant to Section 21, they are found unsuitable, the Council shall submit a report with a recommendation for the revocation of the approval to operate such teaching institution to the Government of Nepal and to the university or body from which the concerned teaching institution has obtained affiliation. (2) Upon receipt of the report with recommendation submitted by the Council pursuant to sub-section (1), the concerned university or body granting affiliation shall make necessary inquiry and submit its opinion to the Government of Nepal. (3) The Government of Nepal may, upon consultation with the Council, revoke the approval to operate such teaching institution in accordance with the report submitted by the Council pursuant to sub-section (1) and the opinion submitted by the concerned university or body pursuant to sub-section (2). Notice of such revocation of approval to operate the teaching institution shall be published in the Nepal Gazette. (4) If an irregularity is found in any examination conducted by a teaching institution recognized pursuant to Section 21, the Council shall recommend to the Government of Nepal to cancel the degree, diploma, certificate, or other qualification in nursing subjects awarded based on such examination. (5) Upon receipt of a recommendation pursuant to sub-section (4), the Government of Nepal may, after making necessary inquiry in that regard, cancel the degree, diploma, certificate, or other qualification in nursing subjects awarded by such teaching institution after a specified date. Notice of such cancellation shall be published in the Nepal Gazette. Inserted by the First Amendment. 24A. Power to Conduct Examination: (1) If necessary to maintain the required quality in nursing subjects, the Council may conduct examinations as prescribed. (2) The names of nursing professionals who fail to pass the examination conducted pursuant to sub-section (1) shall not be registered or renewed in the register of the Council. 25. Matters to be as per this Act: Matters provided for in this Act shall be according to this Act, notwithstanding anything contained in any other law in force. 26.

Fund of the Council: (1) The Council shall have a separate fund. (2) The fund of the Council shall consist of the following amounts:- (a) Amounts received from the Government of Nepal, (b) Amounts received as fees for the registration of names of nursing professionals, and (c) Amounts received from other sources. (3) The operation of the fund of the Council shall be as specified by the Council. 27. Accounts and Audit: (1) The Council shall maintain accounts of income and expenditure as prescribed. (2) The audit of the Council shall be carried out as prescribed. (3) The Government of Nepal may, if it so desires, inspect or inquire into the accounts and documents relating to the fund at any time. 28. Dissolution of Council: (1) If the Government of Nepal is of the opinion that the Council has failed to exercise the powers conferred upon it under this Act or the rules framed under this Act, or has misused its powers, or has exercised powers beyond those conferred,

or has failed to perform the duties that the Council is required to perform under this Act or the rules framed under this Act, the Government of Nepal shall give necessary directives to the Council to rectify or correct such matters. Amended by the First Amendment.(2) If the Council fails to rectify or correct its work and proceedings in accordance with the directives given under sub-section (1), the Government of Nepal may dissolve the Council and constitute an Interim Executive Council to carry out all functions that the Council would perform under this Act and the rules framed under this Act. Amended by the First Amendment.(3) After the dissolution of the Council pursuant to sub-section (2), the fund and other properties of the Council shall be kept in the custody of the Interim Executive Council constituted pursuant to sub-section (2), and after a new Council is constituted, the fund and properties shall be handed over to the newly constituted Council. Amended by the First Amendment.(4) A new Council shall, in general, be constituted pursuant to Section 5 within three months from the date of dissolution of the Council pursuant to sub-section (2). 29.

Penalties: (1) A person practicing the nursing profession in contravention of Section 20 shall be liable to Amended by the Some Nepal Laws Amendment, Codification, Consolidation and Repeal Act, 2074. imprisonment for a term up to three years and a fine up to thirty thousand rupees. (2) Except as provided in sub-section (1), a person who does any act in contravention of this Act or the rules framed under this Act shall be liable to a fine up to two thousand rupees. Inserted by the First Amendment.29A. Appeal: A person who is not satisfied with a decision of the Council under this Act may, within thirty-five days from the date of such decision, appeal to the Amended by the Some Nepal Acts Amendment Act, 2072. High Court. 30. Authority for Investigation and Prosecution: The authority or body for investigating and prosecuting offenses under Section 20, and the procedure relating thereto, shall be as specified by the Government of Nepal by notification in the Nepal Gazette. 31. Power to Frame Rules: The Council may frame necessary rules for the implementation of the objectives of this Act, and such rules shall come into force only after approval by the Government of Nepal.